

AMERICAN FORK CITY COUNCIL
JUNE 9, 2020
REGULAR SESSION MINUTES

This meeting was held electronically.

Members Present:

Bradley J. Frost	Mayor
Kevin Barnes	Council Member
Staci Carroll	Council Member
Barbara Christiansen	Council Member
Rob Shelton	Council Member
Clark Taylor	Council Member

Staff Present:

David Bunker	City Administrator
Wendelin Knobloch	Associate Planner
Terilyn Lurker	City Recorder
Anna Montoya	Finance Officer
Aaron Brems	Fire Chief
George Schade	IT Director
Cherylyn Egner	Legal Counsel
Adam Olsen	Senior Planner
Darren Falslev	Police Chief
Scott Sensanbaugher	Public Works Director

Also present: Josh Walker and Kristina Wessemann

The American Fork City Council met in a regular session on Tuesday, June 9, 2020, electronically, commencing at 7:00 p.m.

REGULAR SESSION

1. Pledge of Allegiance; Invocation by Council Member Taylor; roll call.

Mayor Bradley J. Frost welcomed everyone. The Pledge of Allegiance was recited and an invocation was offered by Council Member Clark Taylor. Roll call was taken.

2. Twenty-minute public comment period - limited to two minutes per person.

There were no public comments.

3. City Administrator's Report

David Bunker, City Administrator, had nothing to report.

4. Council Reports

Council Member Barbara Christiansen said that she was happy to hear the sirens for the American Fork High School baseball champions. She had nothing new for committee meetings.

Council Member Rob Shelton had nothing major to report. He said that they had the Beautification Committee meeting, but he sent an email update.

Council Member Kevin Barnes had nothing to report.

Council Member Staci Carroll said that Steel Days was still happening. She said there was a meeting with the heads of the different events. She said that they are planning to hold events, assuming they will be in a green phase. However, if the State is still in yellow or things look bad, they will pull back. She explained that as they plan, they are setting up both green and yellow events so that there were options moving forward. She planned to put together a list of what that would look like, should the council be interested.

Council Member Clark Taylor had nothing to report.

5. Mayor's Report

Mayor Bradley J. Frost said that he appreciated them picking up the slack for the last meeting. He explained that his daughter graduated and it was a different day, but his daughter felt loved and supported.

He shared with the Council that he attended the ribbon cutting for the Family Tire Pros of Utah, on the corner of Main and 100 West.

Mayor Bradley J. Frost also noted that he had been meeting with other mayors and commissioners about the CARE Act. He said that he would be providing a summary of the action items that have resulted from those conversations, including how the money will be received and the amount that will be awarded to the City.

He mentioned that Laurel Allman, Administrative Assistant, had retired and her replacement would start on June 15th.

Mayor Bradley J. Frost said that he was going to get a little bit personal. He shared that today he received an incredible, personal thing from his five-year-old granddaughter who picked up her summer reading adventure packet. He said that it seemed like it was Christmas Day for her. He stated his appreciation for the library and everyone who is continuing operations, as it feels good that they are doing normal things.

Lastly, the Mayor shared that a good friend and associate, David Shaw, passed away.

COMMON CONSENT AGENDA

(*Common Consent* is that class of Council action that requires no further discussion or which is routine in nature. All items on the Common Consent Agenda are adopted by a single motion unless removed from the Common Consent Agenda.)

1. Approval of the May 12, 2020 city council minutes.
2. Approval of the May 19, 2020 work session minutes.
3. Approval of the May 26, 2020 city council minutes.

Terilyn Lurker, City Recorder, summarized some minor changes to the minutes including some spelling corrections on the May 19th and May 26th minutes. She also noted that there were some additions to the minutes that added clarification. In the May 19, 2020 minutes on page nine, line 21, it should read that Council Member Staci Carroll did not understand the concern about the fact that the idea came from the County. In the May 26, 2020 minutes on page nine, line 34 it should read that there were two different types of years: the years in which taxes are received and the years in which taxes are awarded.

Council Member Clark Taylor moved to approve the common consent agenda with the noted changes to the minutes. Council Member Rob Shelton seconded the motion. Voting was as follows:

RESULT:	APPROVED [4 TO 0]
MOVER:	Clark Taylor, Council Member
SECONDER:	Rob Shelton, Council Member
AYES:	Kevin Barnes, Barbara Christiansen, Rob Shelton, Clark Taylor
RECUSED:	Staci Carroll

ACTION ITEMS

1. Ratification of City payments (May 20, 2020 to June 2, 2020) and approval of purchase requests over \$25,000.

Council Member Staci Carroll moved to approve City payments and purchase requests over \$25,000. Council Member Barbara Christiansen seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

2. Review and action of a Reimbursement Agreement for JKG, LLC for improvements along 900 West.

Mayor Bradley J. Frost provided context that this action item was related to the new light by Costco. Council Member Staci Carroll said that she was concerned with the light. She said that she looked up UDOT's recommendation on distance between lights. They recommend a quarter of a mile or 1,310 feet. She said that based on Google Maps, right now the two lights currently meet the requirements at about 1,390 feet apart, but a new light between them would be significantly less than normal. Because of this, she still wanted to see some analysis or data demonstrating how another light would work.

David Bunker, City Administrator, said that one of the reasons why UDOT sets the minimum of 1,320 feet or a quarter mile was because a typical UDOT road had a higher traffic volume. While 900 West did have a lot of traffic, the speed limit, 25 miles per hour, was significantly less than the average UDOT road at 40-plus miles per hour. When traffic volume or speed is reduced, Mr. Bunker said that lights could be spaced closer together. The City could do a traffic study to see how the lights would sync up and impact traffic flow.

Council Member Carroll said that she was afraid to approve something before having some analysis, knowing that they could be trading one problem for another. Council Member Christiansen said she was concerned with northbound traffic backing onto State Street.

Council Member Shelton stated that he thought the City was planning on widening the road from 900 West all the way up to the Timpanogos Highway. Mayor Frost said that he thought that Highland was going to take the next segment from where American Fork left off up to 9600 North.

Council Member Shelton said that 10 years ago when he was on the Board of Adjustment there was a study done by Ryan Hales on the intersection of State Street and 900 West. He said that Mr. Hales did talk about the quarter mile and that any traffic device—be it a light or stop sign—within a quarter mile of each other could cause problems. Because of this, Council Member Shelton was also concerned. He wondered if the developer was currently working, causing this to be the City's only chance to make improvements.

Mr. Sensanbaugher said that the improvements were already something that the City had required the developer to do. He indicated that staff had already completed the warrant analysis and the addition of the light did fit with the Utah manual of traffic control devices. He commented that staff cannot recommend a signal without doing a warrant analysis to make sure they meet the manual's requirements. Mr. Sensanbaugher also stated that in addition to the warrant analysis was a secondary study: the progression analysis. This looked at the timing and programming of the signal. Mr. Sensanbaugher said that the City's contractor who does their signal work would complete the timing to ensure that the lights are timed properly between signals to allow the continue flow of traffic.

Council Member Carroll asked if the warrant analysis and progression analysis included modeling. Mr. Sensanbaugher explained that a warrant analysis looked at eight different warrants such as the peak hour delay, turning movement delays, pedestrians, and proximity to school crossings. If an intersection meets those warrants than a signal is needed at the intersection. Mr. Sensanbaugher commented he would love for the area to have less traffic or be designed differently, but that it was what it was. He said that was why the progression analysis was so important and the programing of the lights.

Council Member Carroll stated again that she felt that staff needed to model the traffic flow an impact of the light before they put the light in. If they wait to do a progression analysis it would be too late.

Mayor Frost asked how time sensitive it was to put the light in. Mr. Sensanbaugher said the developer was ready to go and had been waiting a while on the project.

Mr. Bunker asked Mr. Sensanbaugher what concerns he would have with adding additional development without the addition of a signal. Mr. Sensanbaugher answered that when a warrant analysis has been conducted and shows that a signal is needed for safety, he feels as though it is incumbent on the City to put the light in as quickly as possible. He said that the lack of a signal was a safety issue as it was already challenging to get in and out of the intersection. He was concerned that the additional traffic from the developments will make the situation worse. Mr. Sensanbaugher also commented that the progression analysis was not a matter of if the timing of the lights would work, but how they had to be programed so that they work.

Mr. Bunker asked if the City could work with UDOT's traffic signal engineer to make sure the State Street light works with the new light. Mr. Sensanbaugher said they always do.

Council Member Carroll stated that she knows that the intersection is problematic, however, she still felt that adding additional signals can sometimes create bigger problems and safety hazards when they are really close together. She asked if there would be right-ins and right-outs.

Mr. Sensanbaugher repeated Mr. Bunker's point that because of the speed of this road, the proximity of the traffic lights would not be a problem and an additional light would make the intersection safer. He noted some of the right-ins and right-outs entering and exiting different businesses and stated that it seemed as though Council Member Carroll's concern was with northbound traffic getting backed up at the light.

Council Member Carroll admitted that she was not a traffic engineer and that all she could give was her logic, experience and the UDOT data. She outlined a scenario where she turned onto 900 West from State Street and wanted to turn into Costco, where the light would be. She said that she would have to queue at that point to make the left turn. This would make it challenging to turn onto the road from State Street because of a line of cars waiting.

Mr. Sensanbaugher reported that part of the project included extending the median so that there would no longer be a central two way turn lane.

Council Member Shelton asked if the median would have a k-rail on it. Mr. Sensanbaugher said he was not sure if it was k-rail, but it was a non-mountable curb. Mayor Frost clarified that the Council was not concerned with the cars driving over it, but with pedestrians walking on it or standing on the medians asking for assistance.

Council Member Shelton said that was something he would like for staff to look into: that the design was such that pedestrians could not stand on it. He talked about the completion of the I-15 project and the k-rail donation the City received. He pointed staff towards Gerber Construction as a potential source for k-rail.

Council Member Shelton then asked how long the progression study would take. Mr. Sensanbaugher said it would be a couple of days to get the timing right. Council Member Shelton asked if the developers had already started vertical construction. Mr. Sensanbaugher said he thought that they already had. Council Member Shelton wondered if a progression study would delay them. Mr. Sensanbaugher said that the progression study will indicate how to do it.

Council Member Carroll said that she was looking not for the progression analysis, but a more extensive traffic study that looked at alternatives as to how the road could be built or designed. Mr. Sensanbaugher replied that they have already studied different designs and alternatives for the past two years and the experts have designed the best possible layout. He was confident that it was a good design and that they just needed to get the timing of the signal down. He said that a traffic circle was not a good solution and that the median was crucial to the flow of the road. He said that the spacing could not really change without a major investment in relocating various businesses' driveways.

Council Member Shelton asked about having Costco use the parking lot across the street. He explained that there had been a past discussion about redesigning some of the driveways to encourage this. Mr. Sensanbaugher indicated that Costco was only looking at using the parking lot on the southeast corner of 700 West for employees and that he had not heard from Costco on that issue in a while.

Council Member Shelton clarified that he was talking about the current Costco entrance. He said that there had been discussion about requiring Costco to make changes to their current entrance so that their parking situation would make the new light more efficient. Council Member Shelton wanted to know if the City was still requiring those changes. Mr. Sensanbaugher said that the only changes he was aware of, which had already been completed, were turning the south entrance into a right in and right out. In addition, Costco was going to block off the entrances near Les Schwab. This would ensure that people were not stopping and backing up traffic at multiple entrances.

Council Member Shelton asked about the northern entrance. Mr. Bunker said that there was one more additional entrance that Costco would probably need to block off so that the queue at the main entrance had enough space to backup. He said that Costco had suggested that they would probably make other changes to the parking lot. Mr. Bunker spoke with Lehi City who had some good conversations with Costco. He said that Lehi City had stated that it was probably sufficient to just block the first entrance off. Lehi had been involved in the conversation about the signal because Costco technically was in Lehi, not American Fork. Lehi's conversations with Costco had occurred over many years as the conversation about the signal had been going on for at least five years. He said that there were already pedestals for signals on the Costco side. Mr. Bunker added that American Fork did have an approved project with Crown Burger and the bank. The addition of the signal was part of those approved plans. He said that however the traffic problem is addressed he felt that the City was on the hook for reimbursement and noted that because it was a five lane road, he didn't think there were really any alternatives to a traffic light.

Council Member Rob Shelton moved to approve the reimbursement agreement for JKG, LLC for improvements along 900 West. Council Member Barbara Christiansen seconded the motion.

Council Member Carroll addressed the point that they have talked about this project for a while. She noted that tonight was not the first time that she had expressed concerns and referenced her comments at the previous meeting. Council Member Christiansen agreed that she did not feel as though this design was ideal but felt that it was the best alternative they had found.

Council Member Taylor stated he had an issue on spending the money for a traffic study when a project was already this far into development and based on a need. He said that although these traffic studies are conducted, the practical application continues to outweigh the modeled need. Council Member Taylor agreed with Council Member Carroll that there may be another way, but it did not feel like it was within reach; he would be with her if he thought it would make a significant difference. However, he felt that the studies sometimes just ending up being an expense that did not result in a new solution.

Mayor Frost called for a vote on the motion. Voting was as follow:

RESULT:	APPROVED [4 TO 1]
MOVER:	Rob Shelton, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Kevin Barnes, Barbara Christiansen, Rob Shelton, Clark Taylor
NAYS:	Staci Carroll

3. Review and action of a Reimbursement Agreement for Woodside Homes of Utah, LLC for improvements along 700 South.

Council Member Clark Taylor moved to approve the reimbursement agreement with Woodside Homes of Utah, LLC for improvements along 700 South. Council Member Kevin Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

4. Review and Action of an Escrow Bond Agreement with Capital Community Bank & Jean Shoaee.

Council Member Rob Shelton moved to approve the escrow bond agreement with Capital Community Bank and Jean Shoaee. Council Member Clark Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

5. Review and action on an ordinance approving amendments to Section 15.01.220 and Section 17.9 of the American Fork City Code relating to the bonding process, release of funds, and warranty/completion periods.

Rob Shelton wanted to make sure the changes did not take away any options for the developer. Mr. Sensanbaugher indicated it would not reduce developers' options. The code replaces some contradictions and some confusions where the code lacked clarity. He stated if the Council had concerns, he would be happy to explain staff's recommendations.

Mayor Frost asked Mr. Sensanbaugher if this was part of the process staff was undergoing to clean up the code one section at a time. Mr. Sensanbaugher said that yes, they had now clarified a section of the elephant's trunk. He said that cleaning up the code was a big process that they were taking little by little.

Council Member Barnes noted a spelling error.

Council Member Rob Shelton moved to adopt Ordinance No. 2020-06-30 approving amendments to Section 15.01.220 and Section 17.9 of the city code relating to the bonding process, release of funds, and warranty/completion periods. Council Member Clark Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

6. Review and action on a resolution authorizing the city to pick up public safety and firefighter employee retirement contributions.

Mr. Bunker said that the City's Public Safety employees were grateful to the Council for the contributions. The City contributes more than is legally required. He clarified that the remaining .27% would be required by the employee, but American Fork continues to be generous to their Public Safety employees.

Council Member Barnes commented on the budget impact of \$7,000 annually as outlined in the packet. He noted that as they move forward, and more people transition from being tier one to tier two he that the budget impact would continue to rise. Mr. Bunker said that Council Member Barnes was correct. However, as more people became tier two, less people were on tier one which was a higher contribution and cost the City more. Because of this, the transition to tier two was actually beneficial to the City.

Council Member Kevin Barnes moved to adopt Resolution No. 2020-06-11R to authorize the city beginning July 1, 2020, to prospectively pick up and pay required employee contributions for all city employees who are members of the New Public Safety and Firefighter Tier II Contributory Retirement System, subject to a maximum of 2% of compensation for each employee. Council Member Clark Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Kevin Barnes, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

7. Review and action on an Economic Development and Services Agreement with the Chamber of Commerce.

Mr. Bunker explained the City contracted with the Chamber last year for economic development. It was a one-year, renewable contract that extended through June 2020. The proposal that was drafted indicated that the City and Chamber would work on the same items as last year. Because of this, the Council would notice that many of the items they are working on were the same. However, there are three additional tasks that were proposed to be considered. These three areas deal with the downtown study and include: (1) to work with the economic development committee to prepare marketing information and coordinate with the design and form-based code to create an attractive atmosphere for downtown; (2) to create an American Fork downtown business alliance that would offer activities and resources for the alliance such as networking events, an newsletter, and surveys and (3) to create, coordinate and promote at least two additional events that encourage people to come to downtown American Fork. Mr. Bunker said that these three tasks were specifically pointed out by the Advisor's Consulting Group lead by Randy Sant and his team.

Josh Walker, representative from the Chamber, said that the Chamber had sent out the list of

accomplishments from the past year to the Council. He was happy to answer any questions about what was accomplished in the past year or their goals for the future. He noted that not everyone was able to see the report from the Advisor's consulting group, but that Randy Sant had a lot more to suggest. With an understanding of budgets and what could most feasibly get done, these were the three areas the Chamber wanted to focus on.

Mayor Frost appreciated the Chamber and all the work they have done during COVID-19. He felt that the business community had a place to turn for help. He was extremely impressed with how the Chamber rallied around the food establishments through the creation of a Facebook page and how they support curbside pickup. The Mayor felt comfortable adding to the responsibilities.

Council Member Shelton was at first skeptical about placing the downtown improvements in the hands of the Chamber. However, the economic uncertainty of COVID-19 allowed the Chamber to show their value and what they could provide. He said that he was extremely impressed by the ways the Chamber had stepped up to the plate over the last three months and provided a significant value to the businesses. He looked forward to what they were doing. He said that he was looking forward to the re-establishment of the business alliance.

Council Member Christiansen was also excited for the business alliance. She said it almost makes her wish that she was back working on Main Street.

Council Member Taylor said that he felt the revamping of downtown through its economic development and support of businesses was one of the most critical aspects of American Fork that needed to be fostered.

Council Member Shelton said he did appreciate being kept informed. He said that those kind of touches and emails helps give him confidence and comfort when voting for an action like this.

Council Member Carroll said she has been involved a lot with the Chamber, but looking at the list of accomplishments and what the Chamber had done to add value to American Fork re-emphasized how much the Chamber has earned what has been delegated to them to do.

Council Member Rob Shelton moved to approve the Economic Development Agreement with the Chamber of Commerce for the term July 2020 through June 2021. Council Member Clark Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

8. Review and action on an ordinance amending Section 15.01.1525 to the American Fork City Municipal Code, a revised detail for 620/700 South cross section.

Council Member Christiansen asked for clarification about the statement that there would be no budget impact. She thought that it had been estimated that the project would be more expensive. Mr. Sensanbaugher stated he did not have the costs in front of him. However, because it was going to be a developer build, it would not impact the budget as they would be reimbursing the developers out of impact fees.

Council Member Carroll said that she felt as though she owed a thank you for the Council and staff's patience with her being a naysayer and responding to her concerns.

Council Member Clark Taylor moved to adopt Ordinance No. 2020-06-31 approving an amendment to Section 15.01.1525 of the city code relating to the 620/700 South cross section. Council Member Barbara Christiansen seconded the motion.

Council Member Shelton asked when they will see the impact fee analysis. Mr. Bunker verified that Council Member Shelton was asking about the IFFP for the different utilities and informed the Council that they have a meeting set up with Zions Bank and Horrocks and Franson on June 22, 2020. Because of this, it would likely not be until the second meeting in July that they would be able to schedule a work session to go over the project in more detail.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

9. Consideration and action to enter into a closed session to discuss the character or professional competence of individuals, to discuss pending or reasonably imminent litigation, to discuss the purchase, lease or sale of real property, or to discuss other items described in Utah State Code 52-4-204 and 52-4-205.

Council Member Clark Taylor moved to enter into a closed session at 8:05 p.m. Council Member Kevin Barnes seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

Mayor Frost explained the Council Members would leave the Zoom meeting while in the closed session to discuss pending or reasonably imminent litigation but would return to the regular session to adjourn the meeting.

The City Council entered into a closed session to discuss pending or reasonably imminent litigation at 8:10 p.m. Those present included Mayor Bradley J. Frost, Council Member Kevin Barnes, Council Member Staci Carroll, Council Member Barbara Christiansen, Council Member Rob Shelton, and Council Member Clark Taylor. Also present were City Administrator David Bunker, City Civil Attorney Cherylyn Egner, and City Recorder Terilyn Lurker.

Pending or reasonably imminent litigation was discussed, and audio recorded as required by law.

Council Member Kevin Barnes moved to return to the regular session at 9:05 p.m. Council Member Rob Shelton seconded the motion. All were in favor.

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Kevin Barnes, Council Member
SECONDER:	Rob Shelton, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

The Council reconvened in the regular session.

10. Adjournment

Council Member Barbara Christensen moved to adjourn the meeting. Council Member Rob Shelton seconded the motion. All were in favor.

The meeting adjourned at 9:10 p.m.



Terilyn Lurker, City Recorder